

From: PID PID@ombudsman.gov.au 
Subject: Ombudsman Ref: 2023-104906 [SEC=OFFICIAL:Sensitive]
Date: 9 August 2023 at 12:47 pm
To: Rich McLean richarddrawstuff@gmail.com

P

OFFICIAL: Sensitive

Dear Dr McLean

I am writing in response to your email of 21 July 2023.

This Office's consideration of your disclosures (PID-2021-100012, PID-2021-400008, PID-2022-100021, PID-2023-100002 and PID-2023-100007) is finalised and your approaches have been closed. As we have advised you, your disclosures were assessed as not meeting the requirements for a public interest disclosure (PID) under the PID scheme and you have been informed that your disclosures will not be investigated.

We do not have a record of receiving a disclosure from you on 30 July 2023.

It may be helpful for you to know the government has made changes to the PID scheme, this includes:

- many of the matters you are raising in your disclosures cannot be considered under the PID scheme, or the PID scheme is not the most appropriate body to consider your concerns – in these circumstances, an authorised officer can now decide to not assess a disclosure under the PID scheme and can refer a discloser to a more appropriate body. In some circumstances, this may include informing a discloser of options available to them which will finalise the consideration of the disclosure under the PID scheme.
- There is discretion not to investigate a disclosure if the information is the same, or substantially the same as information that has previously been disclosed.

In relation to the outcomes you are seeking:

1. We do not have a record of receiving a disclosure from you on 30 July 2023. Except for reprisal protections, PID protections only apply to persons who have made an internal disclosure that is assessed as a PID. Your disclosures have not been assessed as a PID.
2. This Office is independent and impartial, and we cannot advocate on your behalf to have your NDIS provider create a report with the findings you are seeking. It would also not be appropriate for this Office to try to influence an agency to make the findings you are seeking.
3. This Office cannot investigate the actions of the Prime Minister.
4. This Office cannot direct or compel the Australian Human Rights Commission (AHRC) to investigate your complaint. The AHRC has acknowledged and responded to your complaint, and I consider the advice provided to you is detailed and appropriate. We will not be taking any further action on this matter.
5. This Office cannot ask the Federal Court to provide you with a document confirming you were employed by DSS. I would suggest you contact your former employer if you are seeking details of your former employment.
6. This Office cannot investigate the AAT's consideration of claims brought before it.
7. This Office cannot investigate the actions of your local member.

Additionally, This Office has previously considered your concerns about the Attorney General's Department (our ref: 2022-700571) and I do not consider that further action by this Office about these matters is warranted in the circumstances.

This Office acknowledges the information you have provided to us about the difficult circumstances you are experiencing and your advice about the impact this has had on your mental health and wellbeing. I would encourage you to discuss your health and wellbeing with your GP or your healthcare providers, as they may be able to provide

working with you or one of your healthcare providers, as they may be able to provide you with assistance.

Yours sincerely

Kathleen

Assistant Director, Public Interest Disclosure team

COMMONWEALTH OMBUDSMAN

Phone: 1300 362 072

Email: pid@ombudsman.gov.au

Website: ombudsman.gov.au

Proud to be working on the lands of Ngunnawal and Ngambri peoples



Influencing systemic improvement in public administration

The Office of the Commonwealth Ombudsman acknowledges the traditional owners of country throughout Australia and their continuing connection to land, culture and community. We pay our respects to elders past and present.

The Office of the Commonwealth Ombudsman acknowledges the traditional owners of country throughout Australia and their continuing connection to land, culture and community. We pay our respects to elders past and present.

COMMONWEALTH OMBUDSMAN - IMPORTANT CONFIDENTIALITY NOTICE

This e-mail message or an attachment to it is confidential, and it is intended to be accessed only by the person or entity to which it is addressed.

No use, copying or disclosure (including by further transmission) of this message, an attachment or the content of either is permitted and any use, copying or disclosure may be subject to legal sanctions. This message may contain information which is:

- * about an identifiable individual;
- * subject to client legal privilege or other privilege; or
- * subject to a statutory or other requirement of confidentiality.

If you have received this message in error, please call 1300 362 072 to inform the sender so that future errors can be avoided.
